applicant genuinely to intend to visit Australia temporarily as a tourist or for business visitor activity. Regulation 2.43(1)(ea) separately makes ETA cancellation available if, despite grant, the Minister is satisfied the holder did not have, or has ceased to have, an intention only to stay in or visit Australia temporarily for the tourism/business purposes for which the ETA was granted. Home Affairs' own guidance is consistent: visitor visas are for genuine visitors, the holder must intend to stay temporarily, and the visa may be cancelled if that is not true. So the legal answer is not that an ETA can be used as a migration "placeholder" without risk; rather, the 485 legislation does not bar inclusion of an ETA holder, but the ETA must itself be genuine on its own statutory footing.

The second, and practically important, point is that the current Regulations do **not** appear to permit an adult spouse to be added later to a pending temporary Class VC application. Regulation 2.08A allows later addition of a spouse/de facto partner to certain **permanent** applications. By contrast, reg 2.08B, for **temporary** visas including Class VC, only authorises later addition of a **dependent child**. Home Affairs also cautions that not all visas allow additional applicants to be added after lodgment. On the present text, therefore, the spouse should either: (a) be part of the original combined 485 application lodged in December 2026 while physically in Australia; or (b) if not included then, apply later as a separate secondary/subsequent entrant under cl 485.311(b) once the primary applicant already holds the 485. Item 1229(3)(f)(i) then allows that later secondary applicant to apply from **inside or outside Australia**.

Two practical consequences follow. First, if the spouse lodges from an ETA, the ETA still carries condition 8115 (no work other than business visitor activity) and 8201 (study/training capped at 3 months). Secondly, if a Bridging A is generated from the onshore 485 application, the current text suggests the principal applicant who meets item 1229(4) gets BVA condition 8501 only, whereas in "any other case" the BVA carries forward applicable conditions including 8115. I read that as meaning an ETA-lodging **secondary** applicant may well remain subject to ETA-type work/study restrictions until 485 grant; Also, if the spouse departs Australia while only on a BVA, that bridging visa ceases; Home Affairs says only a BVB permits travel and re-entry while the substantive visa is pending.

Conclusion: on your facts, the spouse **can** lawfully be included in the primary applicant's **December 2026** onshore subclass 485 application **if** they re-enter Australia before lodgment on a valid ETA, are in Australia (not in immigration clearance) when the combined application is lodged, remain the applicant's spouse/member of the family unit, and satisfy the secondary criteria. However, that is not risk-free: the ETA must still be held and used as a genuine temporary visitor visa, and it is a poor vehicle if the real plan is simply to circumvent the spouse's **20 September 2026** student visa expiry. If the primary 485 is lodged without the spouse, the current Regulations point away from any later "addition" of the adult spouse to that pending temporary application; the cleaner statutory route is a later standalone secondary/subsequent entrant application after the principal holds the 485.

Resources